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Lobato v. State

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Court	Nevada Supreme Court
Writing for the Court	MAUPIN, J.
Citation	Lobato v. State, 96 P.3d 765, 120 Nev. 512 (Nev. 2004)
Decision Date	03 September 2004
Docket Number	No. 40370.,40370.
Parties	Kirstin Blaise LOBATO, Appellant, v. The STATE of Nevada, Respondent.

96 P.3d 765

120 Nev. 512

Kirstin Blaise LOBATO, Appellant, v. The STATE of Nevada, Respondent.

No. 40370.

Supreme Court of Nevada.

September 3, 2004.

David M. Schieck, Special Public Defender, and Gloria M. Navarro, Deputy Special Public Defender, Clark County, for Appellant.

Brian Sandoval, Attorney General, Carson City; David J. Roger, District Attorney, James Tufteland, Chief Deputy District Attorney, and Sandra DiGiacomo, Deputy District Attorney, Clark County, for Respondent.

OPINION

MAUPIN, J.

Appellant Kirstin Blaise Lobato appeals from a final judgment of conviction, entered following jury verdicts of guilty on separate counts of first-degree murder with the use of a deadly weapon and sexual penetration of a dead human body.¹ In this appeal, we consider whether the trial court erred by precluding Lobato from introducing extrinsic evidence to impeach the testimony of a witness for the State. We reverse Lobato's convictions and remand for a new trial.

PROCEDURAL AND FACTUAL HISTORY

On July 8, 2001, Las Vegas Metropolitan Police Department (LVMPD) officers responded to a report of a dead body behind a dumpster on West Flamingo Road in Las Vegas, Nevada. Police later identified the body as that of Duran Bailey (the victim).

An autopsy revealed extensive wounds inflicted by sharp and blunt objects. The coroner testified that the victim's demise preceded discovery of the body by ten to eighteen hours, and that at least some of the documented blunt force injuries were consistent with an assault with a baseball bat or with a fall against a cement curb. However, the coroner identified several broken teeth, abrasions to the head, and a series of depressed and non-depressed skull injuries to the front, side and back of the head. Accordingly, his testimony strongly implied that at least some of the blunt trauma was exclusively attributable to an assault. The coroner also documented that the victim's penis was amputated at the base, and noted a slash wound between the victim's buttocks from above his anus, through and into the rectum, ending at the posterior aspect of the scrotum. These wounds were sustained post-mortem. Finally, the coroner attributed the victim's demise to a laceration of one of his carotid arteries.

At some point in mid-July 2001, Lobato, a resident of Panaca, Nevada, informed her former teacher and counselor that an older man attacked and attempted to sexually assault her during a recent visit to Las Vegas. She claimed to have cut off the attacker's penis. Some time later, LVMPD Detective Thomas Thowsen learned of Lobato's claim and proceeded to Panaca to interview her. Upon introducing himself to Lobato, Detective Thowsen stated he understood Lobato had been attacked in Las Vegas and been forced to defend herself. Lobato did not respond to this statement. In response to a statement by Detective Thowsen that he "knew she'd been hurt in the past," referring to his knowledge that Lobato was molested when she was six years old, Lobato began to cry and said, "I didn't think anybody would miss him."

Detective Thowsen then administered warnings pursuant to *Miranda v. Arizona*,² after which Lobato provided a recorded statement. She indicated that she had been assaulted previously in Las Vegas, that she used her butterfly knife to defend herself, and that she cut the man's penis, but she did not know if she completely severed it. She also stated that she managed to escape and left the assailant lying still on the ground and crying. When asked if she hit the man with anything other than her knife, Lobato stated "No, but it's poss—I have a baseball bat that I keep behind my seat or had a baseball bat."³ Lobato was vague about the exact date and details of the incident, claiming she was high on drugs. As a result of the interview, the officers placed Lobato under arrest.

The State ultimately filed an amended criminal complaint charging Lobato with separate counts of murder with the use of a deadly weapon and sexual penetration of a dead human body. After a preliminary hearing, the justice court bound Lobato over for trial in district court on both offenses.

Detective Thowsen testified at trial concerning his investigation of the homicide and Lobato's statements.⁴ Several witnesses testified for the State regarding other statements made by Lobato to the effect that she was attacked while in Las Vegas and used a knife in self-defense. These accounts varied concerning the extent to which she inflicted injuries upon her assailant—that she severed her attacker's penis, that she simply slashed the organ, or that she stabbed him in the abdomen.

Korinda Martin, an inmate at the Clark County Detention Center, testified to Lobato's boasts that she was in jail for murder and had forcibly amputated a man's penis and placed it "down his throat." More particularly, Martin indicated that Lobato expressed some worry over blood that might be found in her automobile because she had struck the man in the face and made a series of statements to the effect that she had picked up the assailant, "Darren," with whom she was acquainted, on a public street to purchase methamphetamine; that she was high on drugs; that "Darren" wanted to engage in sex with her and that she refused; that she stabbed him at least eight times in the rectum when he was lying still at the scene; and that, while the man never tried to force her to submit to his sexual advances, she was going to play the "poor me" act and claim that Darren had attempted to sexually assault her. According to Martin, after the State added the sexual penetration charge, Lobato boasted that what she had done was overkill, but that "Darren" deserved it.

Martin testified that she contacted the district attorney's office after her conversations with Lobato and provided police detectives with a statement concerning them. While she requested a letter of recommendation to the parole board in exchange for her testimony, none was forthcoming.

During the State's direct examination, Martin admitted to a prior robbery conviction. However, on cross-examination, she admitted to separate convictions for robbery and coercion. Martin also admitted that she had unsuccessfully attempted to secure her release from custody on several occasions via motions for bail, house arrest, release on her own recognizance, and bail reduction. She admitted that one of the motions was based upon a claim that she was pregnant and that the pregnancy was high risk. Martin stated that, while she would have done whatever was necessary to get out of jail, she would not lie, have someone lie for her, or assist someone to lie to a court. During a recess hearing outside the presence of the jury, Lobato confronted Martin with two handwritten letters that supported the proposition that Martin had engaged in an attempted fraud upon the sentencing judge in her case. One of the letters was a "cover" letter, purportedly from "Korinda," requesting that "Brenda Self," one of Martin's former co-prisoners, copy an attached recommendation letter in her own handwriting and send it to Martin's sentencing court. The attachment was designed to advise the court that Martin was experiencing a high-risk pregnancy and that Brenda hired Martin in November 2000 and continued to employ her. The letter further stated that Brenda would personally assist Martin in any way possible. Although Martin denied sending, writing, or having seen either of the letters, Martin agreed that the letter constituted a fraud upon her sentencing court because she had never worked for Brenda. Interestingly, the envelope in which the defense presented the letters bore Martin's return address and prison "body number."

Following Martin's in camera testimony, the State agreed to a handwriting analysis of the letters, and the parties deferred the line of inquiry until the opinion could be secured. When the trial recommenced, Lobato examined Martin concerning prior convictions and attempts to avoid further prison time but made no inquiry about the letters. Later in the proceedings, when Lobato attempted to present her expert's preliminary opinion that Martin wrote the contested letters, the district court excluded any extrinsic evidence concerning authorship of the letters as collateral to the proceedings under NRS 50.085(3) (<https://us.vlex.com/vid/nrs-50-085-evidence-1033243168>).⁵ Ultimately, the jury heard no evidence regarding the letters, including Martin's denial of any connection with them.

Lobato also sought to have Brenda Self testify to Martin's attempt to mislead her sentencing court. Consistent with its prior ruling excluding the handwriting analysis of the letters, the district court denied the request and ruled that, if Self testified, Lobato could elicit Self's opinion of Martin's truthfulness without reference to any conduct giving rise to that opinion.⁶ Following this ruling, Lobato decided not to present Self's testimony.

Lobato testified in her own defense, claiming essentially that an unknown assailant attempted to sexually assault her, and that she resisted, cut him with a knife and fled the area.

The jury returned verdicts of guilty on both charges. Shortly thereafter, a document examiner for the LVMPD filed a report concluding that Martin wrote at least one of the contested letters.⁷ The district court denied Lobato's motion for a new trial based in part upon this new information.

The district court imposed consecutive 20- to 50-year sentences for first-degree murder with the use of a deadly weapon, and a 5- to 15-year sentence for sexual penetration of a dead body. In addition, the district court imposed a special sentence of lifetime supervision should Lobato be released. Finally, the district court ordered genetic marker testing, along with payments of a \$150 DNA analysis fee, a fine of \$10,000 and a \$25 administrative assessment. The court credited Lobato 233 days for time served prior to the imposition of sentence. Lobato...

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Von Tobel v. Benedetti (<https://case-law.vlex.com/vid/von-tobel-v-benedetti-886718157>)

United States U.S. Court of Appeals — Ninth Circuit September 14, 2020

...Court had defined a reasonable probability as a "probability sufficient to undermine confidence in the outcome." Lobato v. State , 120 Nev. 512, 96 P.3d 765, 772 (Nev. 2004) (quoting Strickland v. Washington , 466 U.S. 668, 694, 104 S.Ct. 2052, 80 L.Ed.2d 674 (1984)). In Godoy , we describ.....

State v. Dist. Ct. (<https://case-law.vlex.com/vid/state-v-dist-ct-890997476>)

United States Nevada Supreme Court June 9, 2005

Sullivan v. Nevins (<https://case-law.vlex.com/vid/sullivan-v-nevins-case-888672439>)

United States U.S. District Court — District of Nevada July 31, 2014

... ... Guilty Plea Memorandum, Exhibit 4. Sullivan agreed to plead guilty to the charges in the information. Id. The State agreed, with regard to Sullivan's sentence, that it would "concur with the recommendation of the Division of Parole and Probation." Id. at 4. The

Newman v. State (<https://case-law.vlex.com/vid/newman-v-state-no-890773441>)

United States Nevada Supreme Court July 18, 2013

...use of specific acts of conduct raises issues under the collateral-fact rule when coupled with a specific contradiction. 120 Nev. 512, 519, 96 P.3d 765, 770 (2004). Here, although enough evidence supported a self-defense instruction as to the battery-by-strangulation charge, this did not ma.....

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July 31, 2014

..., 930 A.2d 984 (D.C., 2007), §6.704 Lizotte v. Praxair, Inc. , 640 F.Supp.2d 1335 (W.D. Wash., 2009), §25.210(a) Lobato v. State, 96 P.3d 765 (2004), §5.405.1 Lockett v. Bd. of Ed. for School D. 189 , 555 N.E.2d 1055 (Ill.App. 5 Dist 1990), §3.400 Lockwood v. Baptist Regional Health Service.....

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United States

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July 31, 2015

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...extrinsic proof of a prior inconsistent statement is inadmissible, unless the statement is material to the case at hand. Lobato v. State , 96 P.3d 765 (2004). If, during cross-examination, a witness admits unequivocally to having made a prior statement, then impeachment is complete and the

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